

Smt. Shalini Singh And 4 Others vs State Of U.P. And 2 Others on 21 April, 2020

Bench: Ramesh Sinha, Samit Gopal

HIGH COURT OF JUDICATURE AT ALLAHABAD

?In Chamber

Case :- CRIMINAL MISC. WRIT PETITION No. - 4965 of 2020

Petitioner :- Smt. Shalini Singh And 4 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- G.A.

Hon'ble Ramesh Sinha,J.

Hon'ble Samit Gopal,J.

By means of this petition, the petitioners Smt. Shalini Singh, Kulveer Singh, Smt. Abha Singh, Raj Pal Singh and Nitin Kumar have prayed for quashing of the impugned FIR dated 13.2.2020 alongwith stay of arrest in Case Crime No. 77 of 2020, under sections 498A, 323, 504, 506, 377 I.P.C. and Section 3/4 D.P. Act, Police Station- Sikandera, District- Agra.

Perused the impugned FIR and the pleadings as has been averred in the present writ petition which is supported by an affidavit.

The office has not placed before the Court any E-Mail received from the learned A.G.A for the State, informant/complainant/aggrieved person regarding any objection with respect to the prayer of stay of arrest of the petitioners.

It transpires from the FIR and the averments made in the present writ petition that the marriage of petitioner no.5 with respondent no.3 was solemnized on 28.1.2013 and out of the said wedlock a male child was born. It is further pleaded that petitioner nos.1 to 4 are sister-in-law(nanad), brother-in-law(nandoi), mother-in-law and father-in-law of the respondent no.3 respectively. It is further pleaded that the impugned FIR has been lodged by the respondent no.3 roping in the entire family of her husband containing absolutely false, concocted, vague and sweeping allegations against them that they were demanding dowry from her and her parents. It further transpires from para-12 of the writ petition that the petitioner no. 5 has filed a Marriage Petition No. 1501 of 2018, under Section 9 of Hindu Marriage Act for restitution of conjugal rights before the Principal Judge, Family Court, Bijnor, copy of which has been annexed as annexure no. 3 to the writ petition. The petitioner no. 5 has also filed another Marriage Petition No. 34 of 2020, under Section 13 of Hindu Marriage Act before the Principal Judge, Family Court, Bijnor, copy of which has been annexed as annexure no. 5 to the writ petition. Though the allegations have been levelled against all the petitioners but it appears to be an exaggerated one against the in-laws of respondent no.3 who are petitioner nos.1 to 4. The allegation of offence under Section 377 I.P.C. has been levelled against the husband only. The petitioners have no criminal history as stated in para-26 of the writ petition.

After having examined the pleadings made in the writ petition, perusing the impugned First Information Report and considering the averments made in the writ petition, we are of the considered opinion that the petitioners shall not be arrested in Case Crime No. 77 of 2020, under sections 498A, 323, 504, 506, 377 I.P.C. and Section 3/4 D.P. Act, Police Station- Sikandera, District- Agra till submission of the police report under Section 173(2) Cr.P.C., if any, before the competent court.

With the aforesaid direction, this petition is finally disposed of.

It is made clear that it will be open for the State, informant/ complainant/ aggrieved person to move an appropriate application for recall/modification of this order, as the case may be, if there has been any material concealment of fact in the present writ petition as the Court has proceeded to take up the present matter during the period of lockdown in the State of U.P. as well as in the Country on the call given by the Hon'ble Prime Minister of India due to Novel Corona Virus (COVID-19), within a period of two months from today.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners alongwith a self attested identity proof of the said person (s) (preferably Aadhar Card) mentioning the mobile number (s) to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 21.4.2020 Naresh (Samit Gopal, J.) (Ramesh Sinha, J.)